

TAIWAN'S OCCUPATIONAL HEALTH AND SAFETY REGULATIONS OVERVIEW

Dr. Yao-Chang Kuo

Department of Occupational Medicine, National Cheng Kung University

- Understand the legal framework of occupational health and safety in Taiwan
- Explore key insurance and compensation mechanisms for occupational injuries
- Analyze real-world case studies and legal disputes
- Discuss employer responsibilities and worker protections

COURSE OBJECTIVES

- Goals:
 - **Prevent** occupational accidents
 - **Support** recovery and reintegration of injured workers
- Insured Units:
 - Employers (default)
 - Labor unions or fishermen's associations (for self-employed or gig workers)

OCCUPATIONAL ACCIDENT INSURANCE AND PROTECTION ACT (2021)

- Eligible Workers (Age ≥ 15 , excluding civil servants):
 - Employed by registered businesses with tax ID or license
 - Foreign workers with valid employment permits
 - Technical interns under Labor Standards Act
 - Cooperative education students in high school
 - **Paid service providers** announced by central authorities $\Rightarrow$ 領有酬勞

MANDATORY INSURANCE COVERAGE

- Medical Benefits
- Injury and Sickness Allowance
 - Starts on the 4th day of inability to work ⇒ 4th start
 - First 2 months: full insured salary ⇒ 2 month 全額 (保險申報薪水)
 - Remaining period: 70% (max 2 years) ⇒ 之後 70%
- Disability Benefits
- Death and Missing Person Compensation

INSURANCE BENEFITS

FOR INSURED WORKERS DIAGNOSED TO NEED ASSISTIVE
DEVICES

MUST NOT HAVE RECEIVED SIMILAR SUBSIDIES UNDER
OTHER LAWS

APPLY THROUGH OCCUPATIONAL SAFETY AND HEALTH
ADMINISTRATION (OSHA)

Assistive Device Subsidy 輔具申請

- FOR HOSPITALIZED WORKERS WITH PERMANENT LOSS OF WORK ABILITY OR SELF-CARE
- REQUIRES CONTINUOUS MEDICAL CARE AND ASSISTANCE IN DAILY ACTIVITIES

Care Subsidy

- **ELIGIBILITY:**
AGE ≥ 15 , ACTIVELY ENGAGED IN AGRICULTURE
MUST MEET ONE OF THE FOLLOWING: $\Rightarrow$ age ≥ 15 農夫強制加保
 - § ENROLLED IN FARMERS' HEALTH INSURANCE
AUTOMATIC ENROLLMENT IN ACCIDENT INSURANCE)
 - § DEMONSTRATED AGRICULTURAL SKILLS AND REGIONAL
ACTIVITY

Farmers' Occupational Hazard Insurance

- **INJURY/SICKNESS ALLOWANCE:**

SICKNESS AND INJURY BENEFITS SHALL BE PROVIDED STARTING FROM THE FOURTH DAY OF INCAPACITY FOR WORK

- 70% OF INSURED SALARY FOR FIRST YEAR
- 50% IF NOT RECOVERED AFTER ONE YEAR

) for farmer

Benefits for Farmers

DISABILITY COMPENSATION:

O ONE-TIME PAYMENT WITH 50% INCREASE

MEDICAL STIPENDS:

O OUTPATIENT: NT\$50/DAY

O INPATIENT: NT\$900/DAY

) 按日固定給付 (農保)

LEGAL CASE STUDIES

- WORKER DIAGNOSED WITH LEFT-SIDE PARALYSIS
- ELIGIBLE FOR DISABILITY BENEFITS UNDER LABOR INSURANCE
- MUST MEET MINIMUM TREATMENT PERIODS FOR DIFFERENT TYPES OF DISABILITIES

Case 1: Stroke-Induced Disability

MENTAL DISABILITY: 2 YEARS

NEUROLOGICAL DISABILITY: 6 MONTHS

SPEECH AND LANGUAGE DISABILITY: 6 MONTHS

DISABILITY OF CHEST AND ABDOMINAL ORGANS : 6 MONTHS

HEAD AND NECK DISABILITY\SPINAL DISABILITY\SKIN
DISABILITY: 1 YEAR

DIALYSIS TREATMENT: IMMEDIATELY

↳ 洗腎

Minimum Treatment Periods for different types of disabilities

13
11/10/2025

失業

➤ LAID-OFF WORKERS MAY CONTINUE INSURANCE VIA:

ORIGINAL EMPLOYER (ON DAY OF TERMINATION)

↳ 辭退當天向原單位加保

LABOR UNION (WITHIN 2 YEARS)

CANNOT CLAIM INJURY/SICKNESS ALLOWANCE
DURING CONTINUATION

Case 2: Layoff and Insurance Continuation

- LABOR INSURANCE BUREAU DENIED OCCUPATIONAL INJURY STATUS
- WORKER MAY FILE A DISPUTE UNDER LABOR INSURANCE DISPUTE REVIEW REGULATIONS ⇒ 勞資雙方都可提出爭議審查

Case 3: Heart Attack While Driving

INSURED UNIT / POLICYHOLDER ORGANIZATION

INSURED PERSON

PERSON WHO PAID FUNERAL EXPENSES ⇒ 辦喪葬的人

MEDICAL INSTITUTION / HEALTHCARE FACILITY ⇒ 醫療機構

How to file a dispute review

MANDATORY ENROLLMENT

- EMPLOYERS WITH ≥ 5 EMPLOYEES MUST ENROLL WORKERS IN LABOR INSURANCE ↳ 75員工一定要保
- *EVEN IF WORKFORCE DROPS BELOW 5, INSURANCE MUST CONTINUE!* ↳ 即使後來<5人也都要保

Employer Obligations

- FINES UP TO 4X UNPAID PREMIUMS → 罰4倍!
- ADDITIONAL PENALTIES FOR FALSE SALARY REPORTING OR SHIFTING PREMIUM BURDEN TO WORKERS → 補差額(高薪低報)

Penalties for Non-Compliance

SPECIAL CONDITIONS

✓: 算!

- ✓• ACCIDENTS DURING COMMUTE FOR COOPERATIVE EDUCATION STUDENTS
- ✓• INJURIES DURING REST DUE TO WORKPLACE HAZARDS
- ✓• ACCIDENTS DURING EMPLOYER-ASSIGNED TASKS OR EVENTS
- ✓• NATURAL DISASTERS: INDIRECT INJURIES MAY QUALIFY

以: 算!

Occupational Disease and Injury Recognition

POST-RETIREMENT CLAIMS

- WORKERS DIAGNOSED WITH OCCUPATIONAL DISEASES AFTER RETIREMENT MAY STILL CLAIM DISABILITY BENEFITS IF DISEASE ONSET OCCURRED DURING INSURED PERIOD

- MUST USE NHI-CONTRACTED HOSPITALS FOR OCCUPATIONAL INJURY TREATMENT
- WORKERS MAY APPLY FOR REIMBURSEMENT OF MEDICAL FEES **WITHIN 7 DAYS**
- EMERGENCY TREATMENT AT NON-CONTRACTED HOSPITALS MAY BE REIMBURSED UNDER SPECIAL RULES

Medical Institutions and Reimbursement

- DISPUTES MAY BE FILED BY WORKERS, EMPLOYERS, BENEFICIARIES, OR MEDICAL INSTITUTIONS
- **MUST FILE WITHIN 60 DAYS** OF RECEIVING DECISION
- REVIEW COMMITTEE INCLUDES LEGAL, MEDICAL, AND ACADEMIC EXPERTS

Dispute Resolution

EMPLOYER DUTIES

- CONDUCT PHYSICAL AND HEALTH EXAMS FOR HIGH-RISK JOBS
- MONITOR WORK ENVIRONMENT (NOISE, DUST, CHEMICALS)
- PROVIDE ON-SITE HEALTH SERVICES FOR WORKPLACES WITH ≥ 50 WORKERS

Workplace Health Promotion

- **FOUR-TIER HEALTH RISK CLASSIFICATION**
- **EMPLOYERS MUST ADJUST WORK DUTIES AND PROVIDE HEALTH GUIDANCE BASED ON MEDICAL FINDINGS**

Health Management System

- WORKERS MAY NOT BE DISMISSED FOR FILING SAFETY COMPLAINTS
- EMPLOYERS MUST REPORT SERIOUS ACCIDENTS WITHIN 8 HOURS → 雇主8hr內通報
- LEGAL AID AVAILABLE FOR OCCUPATIONAL INJURY LAWSUITS

Worker Rights and Protections

- OCCUPATIONAL HEALTH EXPERTS MUST:
 - KNOW THE LAWS
 - ASSIST WORKERS AND EMPLOYERS
 - SUPPORT GOVERNMENT IN RESOLVING DISPUTES AND IMPROVING SYSTEMS

Summary and Reflection